

SENATE No. 2396

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the fueling and confiscation of off-road vehicles.

PETITION OF:

NAME:

Adam Gómez

DISTRICT/ADDRESS:

Hampden

SENATE No. 2396

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 2396) of Adam Gomez for legislation relative to the fuel and confiscation of off-road vehicles. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2245 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the fueling and confiscation of off-road vehicles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 94 Section 295A of the General Laws is hereby amended by
2 inserting after the eighth paragraph the following paragraph:-

3 “The term “off-road vehicle” shall mean any motor vehicle designed or modified for use
4 over unimproved terrain for recreation or pleasure including, but not limited to, all-terrain
5 vehicles, off-highway motorcycles, dirt bikes, utility terrain vehicles, and any motorized vehicle
6 not permitted to be operated on a public way as defined in chapter 90.”

7 SECTION 2. Chapter 94 of the General Laws is hereby amended by inserting after
8 Section 295E the following paragraph:-

9 “Section 295E1/2. No retail dealer shall sell or deliver motor fuel from a dispensing
10 device directly into an off-road vehicle, as defined in section two hundred and ninety-five A. The

11 provision of the previous sentence includes the sale of motor fuel which is dispensed from a self-
12 service pump operated by a customer.”

13 SECTION 3. Chapter 90B, Section 26C, subsection (d) of the General Laws is hereby
14 amended by inserting after the phrase:- “not prohibited by law including” the words:-
15 “destruction of the property,”